

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

-----X
CG, an infant over
the age of 16, by SIXTO GUTIERREZ, father
and natural guardian

Plaintiff

- against -

THE CITY OF NEW YORK,
P.O. HARMANJO SINGH (SHIELD # 16466)
Defendant.

Index No. _____
Purchased _____
Plaintiff designates The Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

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TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
January 27, 2020



MARTINDALE & ASSOCIATES, PLLC
By: Conway C. Martindale II
Attorneys for Plaintiff
380 Lexington Avenue, 17th Floor
New York, New York 10168
(212)405-2233

Defendant's Address:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

NEW YORK POLICE DEPARTMENT

1 Police Plaza
New York, NY 10007

OFFICER HARMANJO SINGH (SHEILD # 16466)

45th PRECINCT
2877 Barkley Avenue
Bronx, NY 10465

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

=====X
CG, an infant over the age
of 16, by SIXTO GUTIERREZ, father and natural guardian

Plaintiff,

Index No.
Verified Complaint

- against -

THE CITY OF NEW YORK,
P.O. HARMANJO SINGH (SHEILD #16466)
Defendant.

=====X
Plaintiff CG, an infant over the age of 16, by SIXTO GUTIERREZ, father and
natural guardian, by his attorneys MARTINDALE & ASSOCIATES, PLLC, by
CONWAY C. MARTINDALE II, principal, complaining of the Defendant, respectfully
shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times relevant herein, Defendant THE CITY OF NEW YORK ("CITY"),
was and still is a municipal corporation organized and existing under and by
virtue of the laws of the State of New York.
2. Upon information and belief, all New York Police Department ("NYPD")
officers, including Police Officer HARMANJO SINGH ("SINGH") mentioned
herein were, at the time of the occurrence, police officers of Defendant CITY, and
at all times herein were acting in such capacity as the agents, servants, and
employees of the defendant CITY.

3. At all times relevant herein, Plaintiff CG ("CG") is a citizen of the United States and a resident of Bronx County in the City and State of New York.

PROCEDURAL POSTURE

4. Within 90 days after the incident, which occurred at approximately 4:30pm on September 20, 2019, in front of 1313 Bradford Avenue, Bronx, New York, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon the Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
5. At least thirty days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety days after the happening of the event upon which the claims are based.
6. A 50-H hearing has been held.
7. The Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FACTS

8. Paragraphs 1-7 are incorporated by reference as fully set forth herein.

9. In the afternoon of September 20, 2019, Plaintiff CG was sitting in the passenger seat of a parked car with his friend Bryan. The Plaintiff and his friend Bryan were present in the vehicle at all times relevant herein.
10. At approximately 4:30pm that afternoon, two NYPD officers approached in a marked NYPD vehicle and pulled up behind the vehicle CG sat in.
11. Shortly after pulling behind Bryan and CG, DEFENDANT SINGH And an unidentified NYPD officer exited their vehicle and approached Bryan's vehicle on either side of the vehicle. Defendant SINGH Came up to the passenger side where CG sat.
12. DEFENDANT SINGH asked for CG's identification. CG explained to DEFENDANT SINGH That he was only 16 years old and did not have any identification on him. DEFENDANT SINGH responded by pulling CG out of the vehicle, and began searching and grabbing him aggressively
13. Fearing for his safety, CG pulled away from DEFENDANT SINGH, resulting in DEFENDANT SINGH grabbing CG by his body and slamming his body on its right side upon the concrete.
14. Before, during, and after the illegal seizure described in paragraph 13, DEFENDANT SINGH used excessive force against the Plaintiff CG, injuring his person; specifically, dislocating his right hip. The aforementioned actions of DEFENDANT SINGH resulted in hospitalization of CG at Jacobi Medical Center, Harlem Hospital (where his hip was put back into place) and Bellevue Hospital.

15. After arresting and handcuffing CG, DEFENDANT SINGH escorted him in handcuffs to the 45th Precinct in Bronx County., where he complained of pain in his right hip and needing medical attention.
16. CG was eventually taken to Jacobi Medical Center for medical attention. After being removed from Jacobi Medical Center in police custody, CG was taken to central booking in Bronx County.
17. Approximately twenty four hours after he was arrested, Plaintiff was released from custody on his own recognizance.
18. After being released, CG sought further medical attention at Harlem Hospital where he was diagnosed with a dislocated right hip.
19. As a result of being attacked and beaten by NYPD officers, CG suffered physical injuries, including injuries to his right hip, causing him to limp. In addition to suffering physical injuries to his person, CG suffered emotional distress.

FIRST CAUSE OF ACTION: FALSE ARREST

20. Paragraphs 1-19 are incorporated by reference as though fully set forth herein.
21. There, NYPD officers, including DEFENDANT SINGH jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully handcuffed and arrested CG, using excessive force in the process. Defendant SINGH arrested Plaintiff CG intentionally, and CG at all times was aware he was being arrested and did not consent to being arrested.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

22. Paragraphs 1-21 are incorporated by reference as though fully set forth herein.
23. The officers who arrested the Plaintiff, as described in paragraphs 9-17, intended to confine him. The Plaintiff CG was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

THIRD CAUSE OF ACTION: ABUSE OF PROCESS

24. Paragraphs 1-19 are incorporated by reference as though fully set forth herein.
25. In arresting CG as described in paragraphs 9-19, the arresting NYPD officers, including DEFENDANT SINGH were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.
26. In arresting CG as described in paragraphs 9-19, the arresting NYPD officers, including DEFENDANT SINGH sought either a detriment to CG or a collateral advantage to themselves that is outside of the legitimate ends of making an arrest.
27. As a result of defendants' abuse of process, including SINGH, CG sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: MALICIOUS PROSECUTION

28. Paragraphs 1-27 are incorporated by reference as though fully set forth herein.
29. In arresting CG as described in paragraphs 9-19, the arresting NYPD officers, including DEFENDANT SINGH acted with malice and without probable cause.

30. As a result of being maliciously prosecuted by the arresting NYPD officers, including DEFENDANT SINGH, CG sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FIFTH CAUSE OF ACTION: ASSAULT

31. Paragraphs 1-30 are incorporated by reference as though fully set forth herein.

32. Immediately before DEFENDANT SINGH arrested CG as described in paragraphs 9-19, the officers intentionally placed CG in apprehension of imminent harmful or offensive contact without CG's consent.

SIXTH CAUSE OF ACTION: BATTERY

33. Paragraphs 1-32 are incorporated by reference as though fully set forth herein.

34. The NYPD officers who arrested the CG, including DEFENDANT SINGH, as described in paragraphs 9-19, wrongfully touched, grabbed, handcuffed and seized CG in an excessive manner, subjecting him to harmful and offensive bodily contact. DEFENDANT SINGH lacked legal cause to grab, handcuff, seize or touch the CG, nor did the CG consent to the illegal touching, nor was the touching privileged by law.

SEVENTH CAUSE OF ACTION: 42 U.S.C. 1983 and 1988

35. Paragraphs 1-34 are incorporated by reference as though fully set forth herein.

36. Upon information and belief, the officers who illegally arrested and battered CG, including DEFENDANT SINGH were at all times relevant duly appointed and acting officers of the City of New York Police Department.
37. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
38. CG is and at all times relevant herein a citizen of the United States and resident of Bronx County in the State of New York. He brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
39. The Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.
40. On or about September 20, 2019, as described in paragraphs 9-19, armed officers of the NYPD, including DEFENDANT SINGH, while effectuating the seizure of the CG, searched, seized, assaulted, and battered Plaintiff, and grabbed the Plaintiff's person, without a court authorized arrest or search warrant. The officers seized the person of the Plaintiffs during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested and maliciously prosecuted without the police officers possessing probable cause to do so.
41. The above actions of the arresting officers caused CG to be deprived of the following rights under the United States Constitution:
- (a) Freedom from assault to his person,
 - (b) Freedom from battery to his person,
 - (c) Freedom from illegal search and seizure,

- (d) Freedom from false arrest,
 - (e) Freedom from malicious prosecution,
 - (f) Freedom from the use of excessive force during the arrest process.
42. The arresting officers, including DEFENDANT SINGH subjected CG to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the Fourth and Fourteenth Amendments of the United States Constitution.
43. The direct and proximate result of DEFENDANT SINGH's acts are that CG has suffered severe and permanent physical and psychological injuries. CG was forced to endure pain and suffering to his detriment.

EIGHTH CAUSE OF ACTION: NEGLIGENCE

44. Paragraphs 1-43 are incorporated by reference as though fully set forth herein.
45. At all times hereinafter mentioned, the aforesaid false arrest, false imprisonment, abuse of process, malicious prosecution, assault, and battery were caused solely by the negligence of Defendant CITY, its agents, servants and/or employees.
46. As a result of the negligence by Defendant CITY, the CG sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

NINTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

47. Paragraphs 1-46 are incorporated by reference as though fully set forth herein.

48. Defendant CITY has grossly failed to train and properly supervise its police officers regarding the law of arrest, search and seizure, particularly when its police officers lack a valid arrest or search warrant and where an individual, such as the Plaintiff in the instant case, has not committed a crime and has not resisted arrest.
49. Defendant CITY was negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or probable cause. Defendant CITY was further negligent by failing to implement a policy within its police department instructing police officers to use reasonable force when an individual resists arrest and to not use force when an individual does not resist arrest.
50. Defendant CITY is negligent due to its failure to implement a policy with its police department or actively enforce the law, if any of the following is lacking:
- (a) Probable cause must be present before individuals such as the Plaintiff herein can be arrested.
 - (b) Force cannot be used against an individual who does not physically resist arrest.
 - (c) An individual who sustains physical injury at the hands of the police should receive prompt medical attention.
51. The foregoing acts, omissions and systematic failures are customs and policies of Defendant CITY which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize, and assault and batter Plaintiff.

TENTH CAUSE OF ACTION: NEGLIGENT HIRING

52. Paragraphs 1-51 are incorporated by reference as though fully set forth herein.

53. Defendant CITY was negligent because prior to and at the time of the acts complained of herein, due to the prior history of the police officers mentioned herein, the CITY knew or should have known of the bad disposition of said police officers or had knowledge of facts that would have put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals, conduct illegal searches, or use excessive force during the arrest process.

WHEREFORE, Plaintiff CG demands judgment against the Defendant in the sum of \$10,000,000, together with the costs and disbursements of this action as well as any other additional relief this Court deems just and proper.

Dated: New York, New York

January 27, 2020

Yours, etc.,

MARTINDALE & ASSOCIATES, PLLC

By: Conway C. Martindale II

Attorneys for Plaintiff

380 Lexington Avenue, 17th Floor

New York, NY 10168

(212)405-2233

VERIFICATION

The undersigned, the Plaintiff in this action, affirms under the penalties of perjury:

That deponent is the plaintiff in the within action; that deponent has read the foregoing **VERIFIED SUMMONS AND COMPLAINT** and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes those to be true.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which his attorney has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: New York, New York
January 27, 2020

CG

CG

Sixto Gutierrez
SIXTO GUTIERREZ

Subscribed and sworn to before me, this 20th day of February 2020

[Signature]
Notary Public

CONWAY C MARTINDALE II
NOTARY PUBLIC, STATE OF NEW YORK
Registration No. 02MA6383802
Qualified in New York County
My Commission Expires: 11/26/22

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

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Plaintiff,

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**THE CITY OF NEW YORK,
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Defendant.

SUMMONS & COMPLAINT

**Martindale & Associates, PLLC
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**TO: CORPORATION COUNSEL OF THE
CITY OF NEW YORK
100 Church Street
New York, New York 10007**

**NEW YORK POLICE DEPARTMENT
1 Police Plaza
New York, NY 10007**

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